

BEFORE THE BOARD OF BEHAVIORAL SCIENCE
OF THE STATE OF IOWA

IN THE MATTER OF:

MENTAL HEALTH COUNSELOR LICENSE OF

CASE NO. 14-0187

DIA NO. 18BS0002

AMY JO MURPHY

License No. 00917

Respondent

FINDINGS OF FACT,
CONCLUSIONS OF LAW,
DECISION AND ORDER

On May 11, 2018, the Board of Behavioral Science (Board) conducted a hearing on the reinstatement request filed by Amy Jo Murphy (Respondent) at the Lucas State Office Building in Des Moines, Iowa. The hearing was closed to the public at Respondent's request, pursuant to Iowa Code section 272C.6(1) (2017), and was recorded by certified court reporter Edie Spriggs Daniels. The Respondent appeared and was represented by attorney Rod Maharry. The state of Iowa was represented by Laura Steffensmeier, Assistant Attorney General.

The following Board members were present for the hearing: Chairperson Eric Oostenink; Wade Leuwerke; Amy Crow Sunleaf; Kevin Allemagne; Sarah Thomas; Vice-Chairperson Donald Gilbert; and Jeff Kerber. Also attending were Board Executive Judy Manning, Assistant Vicky Winter-Clearman, and Bureau Chief Mike Marshall. Administrative Law Judge David Lindgren from the Iowa Department of Inspections and Appeals assisted the Board in conducting the hearing and was instructed to prepare the Board's Decision in conformance with their deliberations.

The record includes the testimony of respondent Amy Murphy, respondent's Exhibits A through I, and State Exhibits 1 through 3. The Exhibits were admitted without objection.

FINDINGS OF FACT

Amy Murphy started practicing as a licensed mental health counselor in Iowa in 2003. She later opened her own practice, known as AJ Counseling Services, in 2006, and that practice eventually had offices and satellite offices in Omaha, Nebraska, Red Oak, Corning, and Shenandoah. She focused her practice in southeast Iowa because it is an under-served, high-risk area with low income and significant drug issues.

Starting in 2012 and running through February of 2013, Murphy provided marital counseling to Client #1 and Client #1's spouse. In April of 2013, Client #1, who was a teacher, asked her to assist in training students as part of a new school group. Murphy agreed and met with the group, and also with Client #1, several times. Those meetings eventually lead to a romantic and sexual relationship between Murphy and Client #1. Murphy is now married to Client #1, having wed in September of 2016. Information relating to the relationship later was passed on to the Board.

On November 6, 2014, the Board filed a Notice of Hearing and Statement of Charges against Murphy alleging five counts, including that Murphy had (1) engaged in sexual activities or contact with a client, (2) engaged in unethical conduct by improper sexual conduct with a client, (3) engaged in a practice harmful or detrimental to the public, (4) failed to comply with a Board subpoena, and (5) committed fraud in procuring a license through a false representation of a material fact.

The factual circumstances for these charges largely surrounded Murphy's relationship with Client #1. However, in allegation #5, the Board alleged that Murphy had answered "no" to the question of whether she had ever been investigated by a licensing authority. This was based on the Board's knowledge that in 2012 Murphy had entered into an Assurance of Compliance with the State of Nebraska based on her failure to maintain professional boundaries.

On February 5, 2015, Murphy and the Board entered into a Settlement Agreement and Final Order that resolved the contested case, with Murphy voluntarily surrendering her license. As part of this agreement, Murphy agreed not to engage in mental health counseling in Iowa or hold herself out to the public as a mental health counselor. She also agreed to not request reinstatement for one year, and that prior to doing so she must undergo a comprehensive mental health boundaries evaluation. Finally, she agreed that her license would not be reinstated except upon a showing that the basis for the revocation of her license no longer exists and that it is in the public interest to be reinstated.

On March 21, 2018, Murphy submitted to the Board an Application for Reinstatement. She noted that she had not held herself out as a mental health counselor, had waited over one year, and had undergone a comprehensive mental health and boundaries evaluation with Dr. Gary Gard, who had been provided her entire file.

Pursuant to the requirement in the Settlement Agreement, Dr. Gard, a clinical psychologist, conducted a psychological evaluation of Murphy on January 22, 2018. In the report following his evaluation, Dr. Gard noted that while at the time Murphy began her relationship with Client #1, her personal life had been in turmoil due to a difficult breakup, she is now in a stable relationship, has settled down greatly, and is in good health. Dr. Gard also noted that Murphy is in the high average range of intelligence, appears to have the psychological resources to cope with the demands of her life, and is capable of managing the stresses in her life. However, Dr. Gard additionally cautioned that Murphy

is defensive about admitting to psychological problems, and she will try to deny them. Attempting to avoid criticism and derogation, she is inclined to be Pollyannaish and to quickly accept blame when things go wrong. Although she occasionally has oppositional and cynical feelings, she hesitates to express them lest she lose emotional control.

Dr. Gard concluded that, assuming she meets certain conditions, Murphy “will be a very competent therapist who will not be of any danger to the public in repeating therapeutic boundary problems.” The conditions upon which Dr. Gard made this assessment was that (1) for the first two years after relicensing she undertake personal counseling for herself, (2) she take an ethics course every year, and (3) she meet with a clinical supervisor twice per month during which boundary issues are discussed.

In line with these recommendations, Murphy has undergone and continues to undergo personal counseling with John Atherton, a mental health practitioner in the State of Nebraska. This counseling began in February or March of 2018. Initially, Murphy saw Atherton weekly, but at the time of the hearing she had decreased to seeing him only every other week. Atherton submitted a letter to Murphy’s attorney reporting that Murphy has been cooperative and communicative, and that they have covered ethical, legal and personal issues.

At the time of her Application for Reinstatement, Murphy had completed a course on Exploring Ethical Challenges in the Therapeutic Relationship and Counseling Environment. This was an online seminar that she completed on March 19, 2018. Murphy had also indicated that she was enrolled in additional courses on May 2 and May 31. However, due to the birth of a litter of dogs, she was unable to attend the May 2 class on boundary setting in clinical practice. She still intended to take the May 31 course.

In addition, and also pursuant to Dr. Gard's recommendation, Murphy has secured the services of mental health counselor Karen Gard to act as her clinical supervisor upon reinstatement of Murphy's license. Karen Gard is Dr. Gard's wife and was retained on his recommendation.

When asked at the hearing why she had waited three years before seeking reinstatement, Murphy stressed how devastating it was for her to be suspended and unable to work as a counselor. It took a while to begin the grief process and it took her even longer to feel internally that she was "in a solid place" and ready to move forward. It took a long time to heal, and she had doubted at times whether she would seek reinstatement at all. Also, when asked what she had done to be ready to practice again, Murphy mentioned her self-reflection and the new-found "balance" in her life. She believes it is in the public interest for her to again be able to provide counseling services because she intends to work in an area in desperate need of such services and because previously she had a good reputation as a mental health counselor.

Murphy also explained her actions in 2012 in Nebraska that led to an investigation by that State's licensing authority. According to Murphy, she had a client that texted her a lot, and eventually the texting happened every day all day. This became unhealthy and Murphy sought help for it. She denied that it was a romantic relationship.

If she is reinstated, Murphy hopes to work at her mother's business, Authentic Journey. Murphy's mother is a licensed mental health counselor. She plans to start up part time, in hopes that she would eventually progress to full time work. She also assured the Board that she would always work with another clinician on site.

CONCLUSIONS OF LAW

The Board of Behavioral Science is authorized to license marital and family therapists and mental health counselors in Iowa. 645 Iowa Administrative Code (IAC) 31.6. In the event the Board finds there is probable cause for taking disciplinary action against a licensee following investigation, the Board shall order a contested case hearing be commenced. 645 IAC 11.4. The Board has the authority to revoke or suspend a license. 645 IAC 13.1. A contested case may be resolved by informal settlement, which may include a voluntary surrender of a license. 645 IAC 12.1. A licensee whose license has been revoked, suspended or voluntarily surrendered must apply for and receive reinstatement of the license in accordance with the administrative rules. 645 IAC 31.17.

With regard to the reinstatement of a license, 645 IAC 11.31 provides, in relevant part:

645-11.31(272C) Reinstatement.

11.31(1) Any person whose license to practice has been...suspended may apply to the board for reinstatement in accordance with the terms and conditions of the order of . . . suspension, . . .

11.31(2) If the order of . . . suspension did not establish terms and conditions upon which reinstatement might occur, or if the license was voluntarily surrendered, an initial application may not be made until one year has elapsed from the date of the order or the date of the voluntary surrender.

. . .

11.31(4) An application for reinstatement shall allege facts which, if established, will be sufficient to enable the board to determine that the basis for the . . . suspension of the respondent's license no longer exists and that it will be in the public interest for the license to be reinstated. The burden of proof to establish such facts shall be on the respondent.

11.31(5) An order denying or granting reinstatement shall be based upon a decision which incorporates findings of fact and conclusions of law. The order shall be published as provided for in this chapter.

For a variety of reasons, the Board now concludes that Murphy's license should not be reinstated. As an initial consideration, it is possible that the moment Murphy's license would be reinstated, she would be in immediate violation of a significant ethical prohibition for mental health counselors. In this regard, the Board is empowered to impose disciplinary sanctions, up to and including revocation, when it determines that a licensee has engaged in a sexual relationship with a former client. The Board's rules provide that

A licensee shall not engage in sexual activities or sexual contact with a former client within the five years following termination of the client relationship. A licensee shall not engage in sexual activities or sexual contact with a former client, regardless of the length of time elapsed since termination of the client relationship, if the client has a history of physical, emotional, or sexual abuse or if the client has ever been diagnosed with any form of psychosis or personality disorder or if the client is likely to remain in need of therapy due to the intensity or chronicity of a problem.

Murphy last counseled Client #1 in February of 2013, and they are therefore more than five years removed from the termination of their counselor-client relationship. The general rule, as provided above, is that a licensee may not engage in sexual activities or have sexual contact with a former client within five years following the termination of the client relationship. However, that ban extends indefinitely if “the client has a history of physical, emotional, or sexual abuse or if the client has ever been diagnosed with any form of psychosis or personality disorder or if the client is likely to remain in need of therapy due to the intensity or chronicity of a problem.”

This record is simply silent on whether Client #1 has the type of history that would extend the prohibition on Murphy engaging in a sexual relationship with her indefinitely. If Client #1 had a history of physical, emotional or sexual abuse, then Murphy would be in violation of this ethical guideline immediately upon her license reinstatement. Murphy holds the burden of proof to establish that the grounds for reinstatement exist. Because she has presented no evidence that would allow the Board to determine whether the prohibition on her relationship with Client #1 should be for five-years or indefinitely, it must presume the latter. This apparent violation precludes her relicensing at this point.

The Board is additionally concerned that Murphy has not made the degree of personal progress or self-exploration necessary to ensure it that she is safe to resume her practice. Between the time Murphy voluntarily surrendered her license in February of 2015 and when she submitted to a psychological evaluation with Dr. Gard in early 2018, she apparently did not seek out any external resources or take any other proactive steps to help her understand or move beyond the situation. She did not engage in therapy, counseling, or take advantage of professional educational opportunities.

It was only upon Dr. Gard’s recommendation (as a condition to his finding that she should be relicensed and that she would not repeat her boundary issues) that she finally undertook personal counseling. And, while Murphy just finally started counseling with John Atherton in February or March of this year, she has already decreased from weekly sessions to every-other week. The Board questions why she has already decreased the frequency of this counseling when she even had difficulty explaining to the Board what she had learned in counseling and whether she felt it had been helpful.

In light of her lack of proactive measures and such quickly decreased frequency of counseling, the Board believes Murphy may be undergoing this counseling merely as a tool to reinstate her license, rather than as a supportive instrument to help her to understand why she engaged in unethical relations with a former client and to ensure that similar boundary issues are not revisited in the futures. Is her motivation simply

about getting re-licensed or is she truly trying to get at the root of her issues and move beyond them? That answer is not clear to the Board, and in order for it to be assured that the conditions that led to her current licensing issue no longer exist, there must be more clarity in this record.

At the hearing, when questioned about items that presumably could have been addressed in counseling or would have been readily known by someone serious about reinstatement, Murphy appeared hesitant and unsure of how to answer. For example, the fact that at the time of the hearing Murphy had seemingly not even read the code of ethics, speaks to Murphy's seriousness and the completeness of her efforts to ready herself for possible reinstatement. She was also unable to quickly recount what benefits, if any, she had received from counseling.

The Board is troubled by this, and may infer that insignificant progress had been made at counseling, that Murphy was not taking it as seriously as one would expect, or that she still does not truly understand her ethical lapses. This concern is buttressed by the letters from John Atherton in that they do not reflect whether Murphy was showing any growth in understanding the conditions that led to her boundary issue. The Board needs more assurance and evidence that she is making progress.

The Board is also concerned that the boundary violation with regard to Client #1 may not be an isolated incident, and may be indicative of a pattern. Murphy briefly testified about an earlier boundary issue in Nebraska that led to an investigation. While she explained that that episode never went further than excessive texting with a client, the Board is not convinced it knows the true extent of this relationship or their interactions. Murphy seemed to minimize the import of this situation and was not fulsome in her explanation of it. As the party holding the burden of proof, it was Murphy's obligation to dispel any concern that the Nebraska incident is unrelated to the nature of her boundary violation that led to this action in Iowa.

To summarize, the Board concludes Murphy has not shown that the basis for the suspension of her license no longer exists and that it will be in the public interest for her license to be reinstated. Accordingly, the application for reinstatement must be denied.

DECISION AND ORDER

IT IS THEREFORE ORDERED that Amy Murphy's application for reinstatement of her mental health counseling license is hereby DENIED.

IT IS FURTHER ORDERED that Respondent may not file an application for reinstatement until a minimum period of one year has elapsed from the date of this Decision and Order. Any application for reinstatement will be subject to the provisions of 645 IAC 11.31 and 31.16. The burden of proof will be on Respondent to establish that the reason for the revocation of her license no longer exists and that it is in the public interest for her license to be reinstated.

At this time, the Board is unable to articulate many specific conditions under which it would consider reinstating Respondent's license, except to say that it appears she requires more progress in personal therapy or counseling herself, which must come from a truly independent party, and that she must submit an affidavit indicating whether the nature of her relationship with Client #1 is subject to a five-year ban or lifetime prohibition under 645 IAC 33.2(30)(b). She holds the burden of proof in any future reinstatement request.

IT IS FURTHER ORDERED, pursuant to Iowa Code section 272C.6, that Respondent Amy Murphy shall pay \$75.00 for fees associated with the disciplinary hearing and \$96.25 for the court reporter fees. The total fees of \$171.25 shall be paid within thirty (30) days of receipt of this decision.

Dated this 7th day of June, 2018.



Erik Oostenink, MHC, Chairperson
Iowa Board of Behavioral Science

Pursuant to Iowa Code section 17A.19 (2017) and 645 IAC 11.29, any appeal to the district court from a decision in a contested case shall be taken within 30 days from the issuance of the decision by the board. The appealing party shall pay the full costs for the transcript of the hearing. 645 IAC 11.23.

cc: Laura Steffensmeier, Assistant Attorney General
Rod Maharry, counsel for respondent